

S² Capital

First Partners' Meeting: Agenda

1. Investment philosophy

- Which areas do we focus on?
- What research edge do we rely on?
- What is our preferred holding period?
- How do we think about risk?
- Agree a short statement of our investment philosophy for the website's home page.

2. Investment scope

- Focus on healthcare, or cover a broader range of industries?
- Invest in the United States only, or also in Europe, Switzerland, Hong Kong, mainland China and other markets?

(If markets outside the United States are included, we need to agree currency conversion rules: the base currency, the exchange-rate source and the time the rate is taken, how currency gains and losses enter returns, and whether currency risk is hedged.)

- Do we use ETFs, options, short selling and leverage?
- Do we set limits on the number of positions, single-position size, industry concentration and cash?

(Industry references:

- Single position, 5%: under the US Investment Company Act, a fund may call itself “diversified” only if, for 75% of its assets, no single issuer exceeds 5% of total assets or 10% of that issuer's voting securities; otherwise it is “non-diversified”. Reason: this is the statutory standard for fund classification and disclosure. [15 U.S.C. §80a-5](#)
- Single position, 25%: US tax law requires a fund (RIC), at each quarter-end, to hold at least 50% of its assets in positions where no single issuer exceeds 5%, and to hold no more than 25% in any single issuer. Reason: this is a condition for the fund not being taxed at fund level. [26 U.S.C. §851\(b\)\(3\)](#)
- 5/10/40: an EU UCITS fund may hold no more than 5% in a single issuer; member states may raise this to 10%, but all positions above 5% together may not exceed 40%. Swiss securities funds have the same 10% and 40% limits. Reason: funds offered to the public must spread risk. [UCITS Article 52](#); [Swiss CISO Article 78](#)
- Industry concentration, 25%: the SEC defines “concentration” as investing more than 25% of net assets in one industry or group of industries, and a fund must disclose such a policy. Investing in healthcare only falls into this category. [Form N-1A, Item 9, Instruction 4](#)
- Number of positions, 30–40: Statman (1987) concludes that a well-diversified portfolio of randomly chosen stocks needs at least 30 stocks (for a borrowing investor) to 40 stocks (for a lending investor), against the previously accepted figure of about 10. [JFQA 22\(3\)](#)
- Cash: liquid assets of US equity mutual funds as a share of net assets were 9.1% at the end of 1984, 3.2% at the end of 2015 and 1.4% at the end of 2025. UCITS funds may hold only “ancillary” liquid assets. [ICI Fact Book 2026, Table 15](#); [UCITS Article 50](#)

- Use SPY, XLV, IBB or other indices as benchmarks? How do we evaluate performance?

(Background, data as of 7 October 2026:

- SPY: tracks the S&P 500 Index (US large caps), 504 holdings. Information technology 40.2%, financials 11.3%, communication services 9.7%, health care 9.1%; the top three are NVIDIA 8.6%, Apple 7.3% and Microsoft 5.9%; expense ratio 0.0945%. For: the most widely used US equity benchmark. Against: health care is only 9.1%, so its path is driven mainly by technology stocks. [SSGA](#)
- XLV: tracks the Health Care Select Sector Index (the health care sector of the S&P 500), 61 holdings. Pharmaceuticals 36.9%, biotechnology 19.8%, health care providers and services 17.2%, equipment and supplies 14.8%, life sciences tools 10.7%; the top three are Eli Lilly 15.5%, Johnson & Johnson 10.2% and AbbVie 7.8%; expense ratio 0.08%. For: covers every health care sub-industry. Against: S&P 500 constituents only, with no small or mid caps and no companies listed outside the US; the top three add up to about 33%. [SSGA](#)
- IBB: tracks the NYSE Biotechnology Index (also called the ICE Biotechnology Index; used since 21 June 2021, before that the Nasdaq Biotechnology Index), 243 holdings. Biotechnology 87.3%, life sciences tools 9.4%, pharmaceuticals 2.9%; expense ratio 0.44%. The index is capitalization-weighted, a “pure” biotechnology index covering all major US

exchanges. For: covers small and mid-cap biotechnology. Against: almost no large pharmaceutical, device or services companies; three-year standard deviation 18.9%. [iShares](#); [NYSE](#))

3. Founding and launch

- Set the founding date, initial capital, performance start date and website launch date.

4. Trading and accounting

- Execution price and time: fill at the open, the close, VWAP, or under another rule? How do we record the decision time and the execution time?

(Proposal: limit-price execution)

- Decision time: at the decision, write down the limit price (the highest price for a buy, the lowest for a sell), the number of shares and the validity period; record and timestamp it on the spot. The order takes effect from the open of the next trading day.
- Execution time: within the validity period, the order can fill on any trading day whose low is at or below the buy limit (or whose high is at or above the sell limit), at the limit price; if that day's open is already better than the limit, it fills at the open.
- Daily fill cap: on a day the limit is reached, fill at most a fixed share of that stock's volume for the day (for example 10%).
- The remainder stays in the order and continues to fill at the same share on each later day the limit is reached, until the order is complete or expires; shares filled are recorded day by day.
- At the end of the validity period (for example 20 trading days), the filled part stands and the unfilled part lapses and needs a new decision; the limit may not be changed during the period.
- No separate slippage is charged on limit fills.
- Where a trade must be executed immediately (for example when an exit condition is triggered), use the next trading day's open plus slippage.)

- How do we treat commissions, slippage, position valuation, cash interest and dividends?

(Industry practice:

- Commissions: returns must be calculated after transaction costs; where actual costs are not known, estimates may be used, but the estimate and its basis must be disclosed. [GIPS 2020, 2.A.13 and 4.C.18](#). Rates: Interactive Brokers charges USD 0.005 per share on US stocks, minimum USD 1 per order; Schwab charges nothing for online stock trades. [IBKR](#); [Schwab](#)
- Slippage: live trading data from one large institution for 1998–2011 show an average market impact cost of 12 basis points: 11 for large caps and 21 for small caps. [Frazzini, Israel & Moskowitz 2012](#)
- Position valuation: at fair value, meaning the quoted market price in an active market on the valuation date; trade-date accounting is used. [GIPS 2020, 2.A.9 and 2.A.19](#)
- Cash interest: returns from cash and cash equivalents must be included in portfolio returns. [GIPS 2020, 2.A.11](#)
- Dividends: accrued as of the ex-dividend date; returns should be net of non-reclaimable withholding tax, and whether portfolio and benchmark returns are net of tax should be disclosed. The treaty rate on US corporate dividends paid to Swiss residents is 15%. [GIPS 2020, 2.B.3, 2.B.5 and 4.C.25–26](#); [IRS Tax Treaty Table 1](#))

- How do we account for corporate actions such as stock splits, spin-offs, mergers and delistings?

(Spin-offs: we keep tracking our holdings and decide after a spin-off whether to keep or sell the new shares. Mergers and delistings: expected to be rare; when one occurs, we agree the treatment case by case.)

- What single basis do we use for NAV, portfolio return and benchmark return?

5. Investment decisions

- Who is responsible for research, portfolio management, accounting and website maintenance?
- How do we vote? How do we handle disagreement?
- What must an investment proposal contain at a minimum?
- When do we review positions, and under what conditions do we exit?

6. Research and disclosure

- In what language, how often and in what format do we publish research?

- Which holdings, trades, NAV, benchmarks and data dates does the website show?
- How often do we publish periodic reports, and what do they always include?
- Agree the website disclaimer and our public description.

7. Website launch

- Confirm market data sources, responsibility for updates, edit permissions, backups and the mobile display.

8. Responsibilities and next steps

- Assign owners, completion dates and the time of the next meeting.

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第一次合伙人会议议题

1. 投资理念

- 我们关注什么领域？
- 依靠什么研究优势？
- 偏好的投资期限是多长？
- 如何看待风险？
- 确定网站首页上的一小段投资理念表述。

2. 投资范围

- 聚焦医疗健康，还是覆盖更广泛的行业？
- 只投美国，还是包括欧洲、瑞士、香港、中国内地及其他市场？
(若包括美国以外的市场，需约定汇率换算规则：记账本位币、汇率来源与取价时点、汇兑损益如何计入收益、是否对冲汇率风险。)
- 是否使用ETF、期权、卖空和杠杆？
- 持仓数量、单一持仓、行业集中度和现金比例是否设限？

(行业参考：

· 单一持仓 5%：美国《投资公司法》规定，基金要自称“分散型”，须有75%的资产满足单一发行人不超过总资产5%、且不超过该发行人10%的表决权股份；否则为“非分散型”。原因：这是基金分类与披露的法定标准。[15 U.S.C. §80a-5](#)

· 单一持仓 25%：美国税法要求基金（RIC）每季末至少50%的资产满足单一发行人≤5%，且任何单一发行人≤25%。原因：这是基金享受免于基金层面征税待遇的条件。[26 U.S.C. §851\(b\)\(3\)](#)

· 5/10/40：欧盟UCITS基金单一发行人≤5%，成员国可放宽至10%，但所有超过5%的持仓合计≤40%；瑞士证券基金同为10%和40%。原因：面向公众的基金须分散风险。[UCITS 第52条](#)；[瑞士 CISO 第78条](#)

· 行业集中度 25%：SEC 把“集中”定义为超过25%的净资产投于同一行业或行业组，基金须披露该政策。只投医疗健康即属此类。[Form N-1A Item 9 说明4](#)

· 持仓数量 30–40只：Statman（1987）的结论是，随机选股的充分分散组合至少需要30只（借入方）至40只（贷出方），而此前通行的看法是约10只。[JFQA 22\(3\)](#)

· 现金比例：美国股票型共同基金的流动资产占净资产比例，1984年末9.1%，2015年末3.2%，2025年末1.4%。UCITS 只允许持有“辅助性”流动资产。[ICI Fact Book 2026 表15](#)；[UCITS 第50条](#)

- 以SPY、XLV、IBB或其他指数作为基准？如何评估业绩？

(背景，数据截至2026年10月7日：

· SPY：跟踪标普500指数（美国大盘股），504只。信息技术40.2%、金融11.3%、通信服务9.7%、医疗健康9.1%；前三大为 NVIDIA 8.6%、Apple 7.3%、Microsoft 5.9%；费率0.0945%。优：最通用的美股基准。劣：医疗健康只占9.1%，走势主要由科技股决定。[SSGA](#)

· XLV：跟踪 Health Care Select Sector Index（标普500中的医疗健康板块），61只。制药36.9%、生物科技19.8%、医疗服务17.2%、器械14.8%、生命科学工具10.7%；前三大为 Eli Lilly 15.5%、Johnson & Johnson 10.2%、AbbVie 7.8%；费率0.08%。优：覆盖医疗健康各子行业。劣：只含标普500成分股，没有中小盘和非美国上市公司，前三大合计约33%。[SSGA](#)

· IBB：跟踪 NYSE Biotechnology Index（又称 ICE Biotechnology Index；2021年6月21日起采用，此前为 Nasdaq Biotechnology Index），243只。生物科技87.3%、生命科学工具9.4%、制药2.9%；费率0.44%。该指数按市值加权，是“纯”生物科技指数，涵盖美国各主要交易所。优：覆盖中小盘生物科技。劣：基本不含大型制药、器械和医疗服务，3年标准差18.9%。[iShares](#)；[NYSE](#)

3. 成立与上线

- 确定成立日期、初始资本、业绩起算日和网站上线日期。

4. 交易与核算

- 成交价格与时间：按开盘价、收盘价、VWAP，还是其他规则成交？如何记录决策时间和成交时间？

(提案：限价成交

- 决策时间：决策时同时写明限价（买入的最高价或卖出的最低价）、股数和有效期，当场记录并打时间戳；订单从下一个交易日开盘起生效。
- 成交时间：有效期内，最低价 $\leq$ 买入限价（或最高价 $\geq$ 卖出限价）的交易日可以成交，成交价为限价；若当日开盘价已优于限价，按开盘价成交。
- 每日成交上限：触及限价的当天，最多成交该股当日成交量的一个固定比例（如10%）。
- 剩余部分留在订单中，之后每个触及限价的交易日按同一比例继续成交，直到全部成交或订单失效；逐日记录成交股数。
- 有效期（如20个交易日）结束时，已成交部分保留，未成交部分作废，须重新决策；有效期内不得改价。
- 限价成交不另计滑点。
- 必须立即成交的情形（如触发退出条件），改用下一交易日开盘价加滑点。）
- 佣金、滑点、持仓估值、现金利息和股息如何处理？
（行业惯例：
 - 佣金：业绩须在扣除交易成本后计算；实际成本未知时可用估算值，但须披露估算值及其依据。[GIPS 2020 第2.A.13、4.C.18条](#)。费率：Interactive Brokers 美股每股0.005美元、每笔最低1美元；Schwab 线上股票交易为0。[IBKR](#)；[Schwab](#)
 - 滑点：一家大型机构1998–2011年的实盘数据显示，平均市场冲击成本为12个基点，其中大盘股11个基点、小盘股21个基点。[Frazzini, Israel & Moskowitz 2012](#)
 - 持仓估值：按公允价值，即估值日活跃市场上的市场报价；采用交易日会计。[GIPS 2020 第2.A.9、2.A.19条](#)
 - 现金利息：现金及现金等价物的收益须计入组合收益。[GIPS 2020 第2.A.11条](#)
 - 股息：在除息日按应计确认；收益应扣除不可退还的预提税，并披露组合与基准收益是否扣税。瑞士居民收取美国公司股息的协定税率为15%。[GIPS 2020 第2.B.3、2.B.5、4.C.25–26条](#)；[IRS Tax Treaty Table 1](#)）
- 拆股、分拆、并购、退市等公司行动如何记账？
（分拆：持续追踪持仓，分拆发生后再决定新股是留着还是卖掉。并购和退市：预计较少遇到，遇到时按个例协商。）
- NAV、组合收益和基准收益采用什么统一口径？

5. 投资决策

- 研究、组合管理、核算和网站维护分别由谁负责？
- 如何表决？出现分歧时如何处理？
- 一项投资提案至少需要包含哪些内容？
- 何时复核持仓，什么情况下退出？

6. 研究与披露

- 研究以什么语言、频率和格式发布？
- 网站展示哪些持仓、交易、NAV、基准和数据日期？
- 定期报告多久发布一次？固定包含什么？
- 确定网站免责声明和对外介绍。

7. 网站上线

- 确认行情来源、更新责任、修改权限、备份和移动端显示。

8. 分工与下一步

- 明确负责人、完成日期和下一次会议时间。